

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202105454	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/02/2021 7:30 AM	Location of Incident: § 87(2)(b); Unknown	18 Mo. SOL 3/2/2023	Precinct: 120		
Date/Time CV Reported Mon, 09/13/2021 10:28 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 09/13/2021 10:28 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Genaro Barreiro	00308	950050	WARRSEC
2. DT3 Daniel Golat	00482	950506	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Arthur Leahy	01783	940367	WARRSEC
2. POF Alyssa Krenek	16625	960523	WARRSEC
3. SGT Mark Brinadze	00850	948309	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro entered § 87(2)(b) in Staten Island.	A . Substantiated
B . DT3 Daniel Golat	Abuse: Detective Daniel Golat drew his gun.	B . Exonerated
C . DT3 Genaro Barreiro	Abuse: Detective Genaro Barreiro drew his gun.	C . Exonerated

Case Summary

On September 13th, 2021, the CCRB received the following complaint by telephone from Nickole § 87(2)(b) [BR 1].

At about 7:30 a.m. on September 2nd, 2021, Detective Genaro Barreiro and other members of the Staten Island Warrants Section went to § 87(2)(b) in Staten Island. Detective Barreiro had two objectives in going to the building: to arrest a woman named § 87(2)(b) who lived in apartment § 87(2)(b) according to two warrants issued in 2006 for her arrest; and to then debrief her concerning the whereabouts of § 87(2)(b) the primary subject of Detective Barreiro's investigation, who was romantically involved with § 87(2)(b) according to the detective's intelligence. § 87(2)(g)

§ 87(2)(b) No one responded when Detective Barreiro and Detective Daniel Golat announced themselves at the door to § 87(2)(b). The detectives asked the woman next door if they could access her fire escape, which § 87(2)(b)'s apartment shares. She allowed them to, and the detectives proceeded to enter § 87(2)(b) through a window [Allegation A: Abuse of Authority – Entry, § 87(2)(g)]. § 87(2)(g)

§ 87(2)(b)'s brother was inside of the apartment at the time. § 87(2)(b) heard from him that the two detectives had their firearms drawn as they walked through the apartment [Allegations B and C: Abuse of Authority – Gun Drawn, § 87(2)(g)].

The investigation is not in possession of any video evidence.

Findings and Recommendations

Allegation A: Abuse of Authority - Detective Genaro Barreiro entered apartment 2C inside of § 87(2)(b) – Staten Island.

Allegation B: Abuse of Authority - Detective Daniel Golat drew his gun.

Allegation C: Abuse of Authority – Detective Genaro Barreiro drew his gun.

It is undisputed that at about 7:30 a.m. on September 2nd, 2021, Detective Barreiro and Detective Golat entered § 87(2)(b) inside of § 87(2)(b) through a window overlooking the apartment's fire escape. According to Detective Barreiro, his intention was to arrest "§ 87(2)(b) for her warrants, and then question her about § 87(2)(b) whereabouts. Detective Barreiro began investigating § 87(2)(b) on August 12th, 2021, when probable cause developed to arrest him for a shooting four days earlier, and an I-Card was issued. Detective Barreiro testified during his CCRB interview [BR 3] that he learned from various sources that § 87(2)(b) was romantically involved with a woman named "§ 87(2)(b). This is not reflected in any DD5s (i.e. recorded investigative actions) [BR 4] prepared by the detective. Some of the sources, Detective Barreiro stated, including § 87(2)(b) mother, told him that § 87(2)(b) stayed with § 87(2)(b) in § 87(2)(b). Detective Barreiro equivocated as to whether any of the sources mentioned apartment § 87(2)(b) specifically. § 87(2)(b) testified during her CCRB interview [BR 5] that she and her two children are the only occupants of apartment § 87(2)(b). She is unaware of a "§ 87(2)(b) and does not believe a woman by that name has ever lived in the apartment. § 87(2)(b) knows § 87(2)(b) she stated. The two in fact dated until December of 2020. § 87(2)(b) who never lived with § 87(2)(b) would occasionally visit her apartment after the breakup, but never for more than a few hours.

In researching apartment § 87(2)(b) on NYPD databases, Detective Barreiro discovered numerous recent tenants or persons otherwise associated with the apartment. He could not recall whether any of them were § 87(2)(b) or § 87(2)(b). According to LexisNexis public records, § 87(2)(b) has lived in the apartment since June of 2015. Nine other people, none of which is § 87(2)(b) have lived in the apartment within the past twenty years, the records show. Detective Barreiro could find

very little information about § 87(2)(b) – the undersigned investigator was likewise unable to locate § 87(2)(b) in any databases -- but discovered two outstanding warrants for her arrest [BR 6 and 7], both issued in 2006. The warrants provided § 87(2)(b) address as apartment § 87(2)(b) in § 87(2)(b). In a DD5, Detective Barreiro noted that the “location is also know [sic] for the person wanted for shoot fire job,” apparently referring to § 87(2)(b) (The DD5 provides no details about § 87(2)(b) association with the apartment.) Detective Barreiro did not take any steps to determine whether § 87(2)(b) was inside of the apartment the morning of September 2nd.

Detectives Golat and Barreiro were consistent that someone came to the door of apartment § 87(2)(b) when they knocked, but promptly walked away. According to § 87(2)(b) only her brother was home at the time; he was highly intoxicated, she noted. The detectives then knocked on the door to the adjacent apartment, and a woman opened the door. Detective Barreiro described to her § 87(2)(b) pedigree information, as provided on the arrest warrant. (The only such information on the warrant is § 87(2)(b) age and sex.) The woman allegedly told him that the resident of apartment § 87(2)(b) matched the description. Detective Barreiro showed her a photo of § 87(2)(b) as well, and the woman said that § 87(2)(b) frequented § 87(2)(b). She then allowed Detective Barreiro and Detective Golat into her apartment, and onto her fire escape, which is shared with apartment § 87(2)(b). The detectives proceeded to enter § 87(2)(b) through a window. It is undisputed that they encountered § 87(2)(b) s brother, hereafter § 87(2)(b) inside the living room. § 87(2)(b) later told his sister that both detectives had their guns drawn. (The investigation was not able to reach § 87(2)(b) whose name and phone number § 87(2)(b) declined to provide.) Detective Golat and Detective Barreiro were consistent that they found § 87(2)(b) lying face down on a couch, with his hands tucked underneath himself. During his CCRB interview [BR 8], Detective Golat stated that he ordered § 87(2)(b) multiple times to show his hands, but he did not comply. Believing that § 87(2)(b) could be § 87(2)(b) whose photo he’d seen – both men are African American and have beards – Detective Golat drew his firearm. § 87(2)(b) was wanted for a shooting, the detective explained, and had been previously convicted for manslaughter, after being acquitted for murder; he was, then, “known to carry guns and shoot people.” Detective Golat holstered his firearm once § 87(2)(b) showed his hands. Detective Golat could not recall whether Detective Barreiro drew his firearm. Detective Barreiro also could not recall whether he did so.

New York State Criminal Procedure Law § 120.80 provides that in order to effect an arrest pursuant to an arrest warrant, a police officer may enter any premises in which he reasonably believes the defendant to be present; provided, however, that where the premises in which the officer reasonably believes the defendant to be present is the dwelling of a third party who is not the subject of the arrest warrant, the officer shall obtain a search warrant before entering the dwelling. The officer may make a forcible entry into the premises as necessary. New York Criminal Procedure Law § 120.80 [BR 9]

§ 87(2)(g)

[REDACTED]

Under Patrol Guide 221.01, the decision to display or draw a firearm should be based on an

articulable belief that the potential for serious physical injury is present. When an officer determines that the potential for serious physical injury is no longer present, s/he will holster the firearm as soon as practicable. NYPD Patrol Guide procedure 221.01 [BR 10].

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 11]
- Detective Barreiro has been a member of the service for ten years, over which time he has been the subject of eighteen cases and thirty-eight allegations, none of which have been substantiated.
 - Detective Barreiro's summary of employment history is included in the case file [BR 12].
- Detective Golat has been a member of the service for ten years, over which time he has been the subject of twelve cases and thirty-five allegations, one of which has been substantiated.
 - Case 201710171 involved a substantiated allegation of entry of premises, which was substantiated, and resulted in formalized training.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- The investigator requested any related notices of claim from the NYC Comptroller's Office on May 10th, 2022. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator:	<u>Will Rasenberger</u>	<u>Inv. Will Rasenberger</u>	<u>05/10/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Manager Vanessa Rosen</u>	<u>May 17, 2022</u>
	Signature	Print Title & Name
		Date

Reviewer:	<u></u>	<u></u>	<u></u>
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Signature

Print Title & Name

Date